AUTHORIZATION			
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Issued by:	Svetlana Igel, QA Manager	See M-Files	See M-Files
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REVISION HISTORY				
REV. #	CO #	DESCRIPTION	PREPARED BY	DATE
01.00		Original policy	Natan Blanks	March 17, 2020
01.01	153	Removal of Distribution list as document is maintained electronically. Correct typo in 3.3.3, change reference in section 4.2 D(i) and D(ii) to HIPAA-F-001 or equivalent, and added paragraph to 8.5.	Svetlana Igel	November 24, 2021

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Administration and Management

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1 Assigned Privacy Responsibility

1.1 HIPAA Privacy Rule Language

"A covered entity must designate a privacy official who is responsible for the development and implementation of the policies and procedures of the entity." 45 C.F.R. §164.530(a)

1.2 Purpose Statement

PeriGen will install a Privacy & Security Officer who will be responsible for the implementation and day-to-day administration and oversight of PeriGen's compliance with the HIPAA Privacy Regulations. The Privacy & Security Officer will also develop Workforce Training programs in conjunction with the Human Resource Office and the Director of Quality and Regulatory regarding the privacy of PHI, update and implement of these Privacy Policies and Procedures, and serve as the designated decision-maker for issues and questions involving interpretation of the HIPAA Privacy Regulations. The PeriGen Privacy & Security Officer will be assisted by the Director of Quality & Regulatory, Chief Product Officer, Director, Technical Client Services and Remote Operations, Human Resource Manager, Chief Financial Officer, and others on a daily basis or as often as needed.

1.3 Policy/Procedure

1. The Privacy & Security Officer is responsible for the following tasks:
   a. Inventorying the uses and disclosures of all PHI;
   b. Ensuring that legal issues in drafting compliance documents are addressed or engage competent legal counsel to draft such documents;
   c. Administering sanctions upon Workforce Members for violations of these Privacy Policies and Procedures;
   d. Developing, updating, and revising these Privacy Policies and Procedures as necessary to comply with the HIPAA Privacy Regulations;
   e. Developing a privacy training program;
   f. Establishing procedures to monitor internal privacy compliance;
   g. Keeping up to date on the latest privacy developments and federal and state laws and regulations;
   h. Serving as PeriGen's liaison to regulatory bodies for matters relating to privacy;
   i. Coordinating any audits by the Secretary of HHS or any other governmental or accrediting organization regarding PeriGen's compliance with state or federal privacy laws or regulations; and
   j. Other tasks that are necessary to ensure the privacy of PHI.

2. PeriGen's Privacy & Security Officer's name and contact information is:

   Name: Bruno Bendavid
   Email: Bruno.bendavid@PeriGen.com
   Phone (work):

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1.4 Administrative details

Responsibility: PeriGen Management

Definitions:

Regulatory Category: Privacy Regulations

Regulatory Reference:

- ♦ 45 C.F.R. §164.530(a), Personnel Designations [Standard; Required]

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2 Security Analysis and Risk Management

2.1 HIPAA Security Rule Language

"A covered entity must implement policies and procedure to prevent, detect, contain, and correct security violations. 45 CFR § 164.308 (a)(1)(i).

Conduct an accurate and thorough assessment of the potential risks and vulnerabilities to the confidentiality, integrity, and availability of electronic protected health information held by the covered entity…

Implement security measures sufficient to reduce risks and vulnerabilities to a reasonable and appropriate level to comply with 45 CFR § 164.306(a)." 45 CFR § 164.308 (a)(1)(ii)(A) and (B).

2.2 Purpose Statement

PeriGen, under the HIPAA Security Regulations, is required to implement a security management process and to undertake a risk analysis. Implementation of this security management process will assist PeriGen in ensuring the confidentiality, integrity, and availability of ePHI. PeriGen will create and maintain appropriate and reasonable policies, procedures, and controls to prevent, detect, contain, and correct security violations.

2.3 Policy/Procedure

2.3.1 Risk Analysis

1. At least once per year, PeriGen will convene a workgroup and/or engage outside assistance to conduct an accurate and thorough assessment of the potential risks and vulnerabilities to the confidentiality, integrity, and availability of ePHI and ePHI Systems accessed, used by, owned or operated by PeriGen.
2. The workgroup will consider:
    a. Potential security risks to each ePHI System, including those Security Incidents specifically identified in the Security Incident and Response Policy;
    b. The probability of the occurrence of risks that may affect PeriGen's ePHI through use of effective Threat intelligence;
    c. The magnitude of the identified risk to each ePHI System, workforce member, policy or platform
    d. The criticality of each ePHI System to PeriGen's operations during or after an emergency or disaster;
    e. The frequency of reviews and audits of PeriGen's ePHI Systems pursuant to the Information System Activity Review Policy;
    f. The training and the frequency of such training, to be offered to PeriGen's Workforce Members regarding the security of ePHI;
    g. The need to do penetration testing of the security of PeriGen's ePHI Systems; and

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h. The need to engage third parties to evaluate the risks and vulnerabilities (penetration testing) to the ePHI Systems.

2.3.2 Risk Management

1. In an effort to reduce risks and vulnerabilities to ePHI contained within its ePHI Systems, PeriGen will create a Risk Management Plan to address risks identified in the annual Risk Analysis.
2. In addition to updating the Risk Management Plan after each Risk Analysis, the Privacy & Security Officer will also update the Plan:
   a. After any Security Incident to minimize the likelihood of a similar Security Incident occurring in the future;
   b. After a new functionality or use is added to any ePHI System; and PeriGen's Workforce Members
   c. In response to the addition of any new ePHI System.
3. In developing each Risk Management Plan, PeriGen will consider the following:
   a. The security measures that are already in place to address the risk;
   b. Additional security measures that can reasonably and appropriately be put in place to address the risk;
   c. Communication of the security measures and Risk Management Plan to PeriGen's Workforce Members; and
   d. The need to engage other resources to assist in the implementation of the Risk Management Plan.

2.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: Administrative Safeguards; ePHI System; ; Workforce Member;

Regulatory Reference:

- ♦ 45 C.F.R. §164.308(a)(1)(i), Security Management Process [Standard; Required]
- ♦ 45 C.F.R. §164.308(a)(1)(ii)(A), Risk Analysis [Implementation Specification; Required]
- ♦ 45 C.F.R. §164.308(a)(1)(ii)(B), Risk Management [Implementation Specification; Required]

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3 Information System Activity Review; Audit Controls

3.1 HIPAA Security Rule Language

Implement procedures to regularly review records of information system activity, such as audit logs, access reports, and security incident tracking reports. 45 CFR § 164.308(a)(1)(ii)(D).

"Implement hardware, software, and/or procedural mechanisms that record and examine activity in information systems that contain or use electronic protected health information." 45 CFR § 164.312(b)

3.2 Purpose Statement

PeriGen will - to the extent technically feasible and necessary to guard against identified risks to ePHI – implement hardware, software, and/or procedural mechanisms that record and examine activity in its ePHI Systems to enable PeriGen to detect potentially problematic activity in its ePHI Systems. These audit controls will allow PeriGen to:

1. Identify questionable data access activities in ePHI Systems;
2. Investigate Breaches;
3. Respond to potential weaknesses in ePHI Systems' architecture; and
4. Assess the effectiveness of PeriGen's Security Policies and Procedures.

3.3 Policy/Procedure

3.3.1 Audit logs

1. The following activity audit logs may be generated and reviewed:
   a. Failed authentication attempts after a three (3) unsuccessful attempts;
   b. Automatic sign-offs;
   c. Records contained in each ePHI System, which are accessed by Workforce Members ; and/or
   d. Additions, deletions, or other modifications made to records contained within each ePHI System.
2. The ePHI System activity auditing mechanisms may generate the following information for each audit log:
   a. Date and time of activity;
   b. Descriptions of each attempted or completed activity;
   c. Identification of the Workforce Member performing the activity; and/or
   d. Origin of the activity, such as the I/P address or workstation identification number.

3.3.2 Frequency of Information System Activity Review

1. PeriGen will use its findings from the risk analysis to help determine the frequency of its activity review of each ePHI System.
2. PeriGen will consider the following factors with respect to the frequency of audits and activity reviews:
   a. The sensitivity of the ePHI contained within each particular ePHI System; and

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b. The degree to which each ePHI System is connected to other systems, either within or outside of PeriGen, that contain ePHI and the degree to which that connection poses a risk the ePHI.

3. PeriGen will identify and document the names of Workforce Members who will review audit logs.
4. PeriGen will retain any audit logs that it creates for six (6) years after the date they are created.

3.3.3 Identification of Inappropriate Activity

1. As patterns are identified and anomalous behavior becomes more apparent, PeriGen may establish thresholds for each audit report. The thresholds will signify the level at which certain behavior warrants further inspection and may signal a Security Incident or failure to comply with PeriGen's policies and procedures. As thresholds are established, this policy will be revised accordingly.
2. If Security Incidents are identified through the audit logs, they must be brought to the attention of the Privacy & Security Officer, pursuant to the PeriGen Security Incident Management Policy.
3. If the audit logs reveal that a Workforce Member failed to comply with PeriGen's policies and procedures, appropriate sanctions may be imposed upon the Workforce Member pursuant to the PeriGen Workforce Member Discipline Policy.

3.4 Administrative details

Responsibility: Privacy & Security Officer; Director of Quality and Regulatory

Definitions: ePHI System; ePHI; Workforce Member; Security Incident;

Regulatory Reference:

- ♦ 45 C.F.R. §164308(a)(1)(ii)(D), Information System Activity Review [Implementation Specification; Required]
- ♦ 45 C.F.R. §164.312(b), Audit Controls [Standard; Required]

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4 E-mail and Complaint Handling Systems Audit Policy

4.1 Purpose

1. To provide reasonable monitoring of outgoing ePHI from all staff workforce members. To document, report and analyze any findings of ePHI that was sent in an unsecure fashion.
2. To provide reasonable monitoring of documentation of complaints; to document, report and analyze any findings of ePHI that was stored with complaint records.

4.2 Provisions of Policy

A. Frequency:

i. Audits of email and complaint documentation will be conducted every 12 months.
ii. Audit will include emails and complaints from within the *90 day* time period prior to the date of selected audit start date.

B. Sample size: 30 emails or cases (15 with attachments; 15 without attachments)

C. Audit parameters:

i. 30 randomly selected messages (outgoing email not sent by secure transport) or cases

- 15 with attachments – look to see if text or attachments contain PHI **AND**;
- 15 with no attachments- look to see if text contains ePHI.

ii. Document any findings of emails or cases (with or without attachments) that had ePHI.

****Outgoing message parameters are subject to change and may have different parameters each audit that are specifically relevant to a workforce member's job description.****

Options that may be selected include but are not limited to:

i. Emails sent to external distribution list
ii. Emails sent to PeriGen internal distribution groups
iii. Any outbox message (external and/or internal emails)

D. Findings:

i. All items audited and any findings will be recorded on an audit summary sheet HIPAA-F-001 or equivalent. Details of any found violation will be documented with the incident date, person(s) involved and a description of the incident. For reference purposes, a copy of the email containing the

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incident will be stored according to QMS-4.2.4 - Control of Quality Records with the audit summary.

ii. All audit findings will be reviewed with the Privacy & Security Officer as well as with the Chief Product Officer.

iii. The audit summary sheet HIPAA-F-001 or equivalent will be signed by the Director of Quality & Regulatory, the Privacy & Security Officer as well as the Chief Product Officer to document the completion of the audit review.

iv. Workforce members will receive an overview of their audit findings to address any incidents that were found and provide education where needed.

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5 Assigned Security Policy

5.1 HIPAA Security Rule Language

"Identify the security official who is responsible for the development and implementation of the policies and procedures required by this subpart for the entity..." 45 CFR § 164.308(a)(2).

5.2 Purpose Statement

Under the HIPAA Security Regulations and the HITECH Act, PeriGen is required to designate a Security Official who is responsible for the development and implementation of its Security Policies and Procedures. This policy reflects PeriGen's commitment to comply with such regulations. In addition, the appointment of the Privacy & Security Officer will provide organizational focus to, and highlight the importance of, PeriGen's efforts to protect the confidentiality, privacy and security of the ePHI and ePHI Systems to which is has access. The PeriGen Privacy & Security Officer will be assisted by the Director of Quality & Regulatory, Chief Product Officer, Director, Technical Client Services and Remote Operations, Human Resource Manager, Chief Financial Officer, and others on a daily basis or as often as needed.

5.3 Policy/Procedure

1. The Privacy & Security Officer will perform the following duties, including taking all reasonable and appropriate measures to:
   a. Ensure and confirm that PeriGen is compliant with applicable federal, state, and local laws pertaining to the security of ePHI;
   b. Guide the development, documentation, and dissemination of appropriate security policies and procedures for the Workforce Members, and administrators of PeriGen's ePHI Systems;
   c. Ensure that newly acquired ePHI Systems have options that support required and/or addressable implementations of the HIPAA Security Regulations and PeriGen's internal security requirements;
   d. Approve and oversee the administration, implementation, and selection of PeriGen's security controls for ePHI Systems;
   e. Implement and oversee the security training of PeriGen's Workforce Members, and ensure that Workforce Members receive such training on a periodic basis as deemed necessary pursuant to PeriGen's Security Risk Management Policy, with the assistance of the Human Resources Office and the Director of Quality and Regulatory;
   f. Facilitate the yearly Risk Analysis and creation of a Risk Management Plan;
   g. Ensure that ePHI System activity is monitored and audited to identify Security Incidents and malicious activity as set forth in the Information System Activity Review Policy;
   h. Ensure that the threats and risks to the confidentiality, integrity, and availability of ePHI are monitored and evaluated; and

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i. Oversee the development and implementation of an effective Security Incident response policy and related procedures as set forth in PeriGen's Security Incident Management and Response Policy.

2. PeriGen's Information Security Official is:
   Name: Bruno Bendavid
   Email: Bruno.bendavid@PeriGen.com
   Phone (work): 514-488-3461 ext. 229

5.4 Administrative details

Responsibility: The Privacy & Security Officer

Definitions: Security Incident

Regulatory Reference:

- 45 C.F.R. §164.308(a)(2), Assigned Security Responsibility [Standard; Required]

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6 Evaluation of Security Policies and Procedures

6.1 HIPAA Security Rule Language

Perform a periodic technical and non-technical evaluation, based initially upon the standards implemented under this rule and subsequently, in response to environmental or operational changes affecting the security of electronic PHI that establishes the extent to which a covered entity's security and procedures meet the requirements of this subpart." 45 C.F.R. §164.308(a)(8).

6.2 Purpose Statement

Periodic evaluations of PeriGen's security safeguards, especially in response to environmental or operational changes, are necessary to re-affirm that ePHI continues to be protected in accordance with the HIPAA Security Regulations. This policy reflects PeriGen's commitment to comply with such Regulations.

6.3 Policy/Procedure

1. PeriGen will undertake periodic evaluations of its security safeguards at intervals determined by the Privacy & Security Officer based on the specific triggers and the characteristics of each ePHI System. (at least annually)
2. Changes that may trigger a reevaluation of PeriGen's security safeguards include, but are not limited to:
   a. Known Security Incidents;
   b. Significant new threats or risks to the security of ePHI;
   c. Changes to PeriGen's organizational or technical infrastructure;
   d. Introduction of new ePHI Systems;
   e. Changes to information security requirements or responsibilities; and/or
   f. Availability of new security technologies or recommendations.
3. PeriGen will periodically evaluate its ePHI Security Policies on a annual basis.
4. Each evaluation may include the following activities:
   a. A review of PeriGen's Security Policies and Procedures to evaluate their appropriateness and effectiveness in protecting against any reasonably anticipated threats or hazards to the privacy and security of ePHI.
   b. A gap analysis to compare PeriGen's Security Policies and Procedures against actual practices.
   c. An identification of threats and risks to ePHI and ePHI Systems, in accordance with the Security Risk Management Policy.
   d. An assessment of whether established security controls reasonably and appropriately protect against the risks identified for ePHI and each ePHI System.
5. The evaluation process will be documented, and the evaluation's findings will be reported to the Privacy & Security Officer and PeriGen senior management.
6. Upon review of the evaluation report, the Privacy & Security Officer, if necessary, may initiate the development of a risk management plan, or other measure, to address any deficiencies discovered during the evaluation process.

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7. Upon implementation of the risk management plan or upon the completion of the evaluation process, PeriGen will update its Security Policies and Procedures, security controls, and processes if the results of the evaluation show that such updates are needed.

6.4 Administrative details

Responsibility: Privacy & Security Officer;

Definitions: ePHI; ePHI System; Security Incidents

Regulatory Reference:

- ♦ 45 C.F.R. §164.308(a)(8), Evaluation [Standard; Required]

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7 Updates

7.1 HIPAA Security Rule Language

Review documentation periodically, and update as needed, in response to environmental or operational changes affecting the security of the electronic protected health information. 45 CFR § 164.316(b)(2)(iii).

7.2 Purpose Statement

PeriGen will periodically review its Security Policies and Procedures, and will update these Policies and Procedures as needed, in response to environmental or operational changes affecting the security of ePHI.

7.3 Policy/Procedure

1. PeriGen will review these Security Policies and Procedures at least once per year as part of its annual risk analysis.
2. Such environmental or operational changes, which would require a potential update of PeriGen's Security Policies and Procedures include, but are not limited to:
   a. Known Security Incidents;
   b. Significant new threats or risks to the security of ePHI;
   c. Introduction of new ePHI Systems;
   d. Changes to PeriGen's organizational or technical infrastructure;
   e. Changes to information security requirements or responsibilities; or
   f. Availability of new security technologies or recommendations.
3. The Privacy & Security Officer will oversee the method of updating the Security Policies and Procedures and will ensure that such updating occurs.

7.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: ePHI; Security Incident

Regulatory Reference:

- ♦ 45 C.F.R. §164.316(b)(2)(iii), Updates [Implementation Specification; Required]

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8 Document retention

PeriGen generates and maintains many different types of records, including PHI and business records. These records help practices maintain critical information and delivery quality services and care.

Because of their key role, records need to be appropriately maintained and managed throughout their lifecycle from creation to destruction.

PeriGen will comply with all laws, rules and regulations regarding records retention and records retention periods.

This policy will include:

- Length of time records will be maintained;
- List of records that will be maintained onsite or server;
- Director of Quality and Regulatory– responsible for maintaining record retention policies and initiating the destruction of records;
- Required methods for destructing records while preserving confidentiality (i.e., shredding, disposal, incineration, physical destruction of hard drives via vendors, high level overwriting of e-information, etc.);
- Documenting the destruction of records

8.1 ePHI

The Centers for Medicare and Medicaid Services (CMS) requires records of providers submitting cost reports to be retained in their original or legally reproduced form for a period of at least **5** years after the closure of the cost report *(CFR 482.24[b][1])*.

State law for retention of patient documentation varies from state to state, and may differ between doctors and hospitals, but typically requires between 7 and 10 years from date of last treatment. In the case of minor patients this is typically extended at least until the patient reaches majority. According to North Carolina, for example, Medical Doctors are to retain patient documents **7** years from the date of the last treatment for adult patients; and **7** years after the date of the last treatment or until the patient reaches 21, whichever date is later, for minor patients

HIPAA requires that medical records be retained for two years after a patient's death.

PeriGen will assist its customers in compliance with the above requirements by ensuring that all production ePHI systems containing actual patient records either keep data for the required period or export data to another customer system where it can be retained. When retiring a production ePHI system from service, PeriGen will offer customers a data extraction service to enable them to comply with the retention requirements.

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8.2 Financial and HR Records and other business documents

All financial and HR records and other business documents will be kept in accordance with applicable laws and regulations.

8.3 E-mails

Under the HIPAA rules and regulations, electronic records of disclosures of PHI can be stored for up to 3 years. A disclosure of PHI can be the transmission of data from you to someone outside of the PeriGen organization.

All other e-mails may be deleted once the purpose of record has been fulfilled.

8.4 Quality records

All documentation generated by this HIPAA policy, including logs and other records of activity required by the policy, will be treated as Quality Records and kept in the QMS according to the requirements of QMS-4.2.4 - Control of Quality Records.

8.5 Destruction of records

Paper records must be destroyed by shredding. Electronic records must be deleted and destroyed with a method that provides for no possibility of reconstruction of information. This may involve overwriting of electronic media, magnetic degaussing, pulverizing, cutting, or physically destructing hard drives.

As part of the record disposal process, PeriGen has established a method to document the destruction of records. AHIMA recommends that organizations maintain a destruction log that includes:

- Method of destruction
- Date of destruction
- Description of the records that were destroyed (i.e., name, DOB, SSN, etc.)
- Signature of the Privacy & Security Officer to document scheduling of destruction

Copies of small quantities of individual records may be created locally for review or other normal business operations; such copies are to be kept securely, and promptly destroyed when no longer required. Such destruction will be done securely in a ccordance with this section, e.g. by shredding printouts, but does not need to be logged.

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Signatures:

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